

The Uttar Pradesh Vigilance Establishment Act, 1965

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State of Uttar Pradesh - Act

The Uttar Pradesh Vigilance Establishment Act, 1965

UTTAR PRADESH

India

The Uttar Pradesh Vigilance Establishment Act, 1965

Act 7 of 1965

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The Uttar Pradesh Vigilance Establishment Act, 1965

(U.P. Act No. VII of 1965)

An Act to make provision for the constitution, superintendence and administration of the Uttar Pradesh Vigilance Establishment as a special police force.

It is hereby enacted in the Sixteenth Year of the Republic of India as follows:

1.

Short title and extent ?

(1)

This Act may be called the Uttar Pradesh Vigilance Establishment Act, 1965.

(2)

It extends to the whole of Uttar Pradesh.

2.

Constitution and powers of the Vigilance Establishment-

(1)

Notwithstanding anything in the police Act, 1961 the State Government may constitute a special police force to be called the Uttar Pradesh Vigilance Establishment for the investigation of offences notified under section 3.

(2)

Subject to any orders which the State Government may make in this behalf, members of the said establishment shall have, in relation to the investigation of such offences and arrest of persons concerned in such offences, all the powers, duties, privileges and liabilities which police officers holding corresponding ranks in the ordinary police force of the State have in connection with investigation of offences, and shall for purposes of conferment of powers under any law for the time being in force be deemed to be police officers holding corresponding ranks in the ordinary police force of the state.

(3)

Any member of the said establishment of or above the rank of Sub-Inspector may, subject to any orders which the State Government may make in this behalf, exercise, in discharging his functions under sub-section(2) any of the powers of the officer-in-charge of a police station in the area in which he is for the time being and when so exercising such powers shall, subject to any such orders as aforesaid, be deemed to be an officer-in-charge of a police station discharging the functions of such an officer within the limits of his station.

3.

Offences to be investigated by the Vigilance Establishment ?

State Government may, by notification in the Gazette, specify the offence or classes of offences which are to be investigated by the Uttar Pradesh Vigilance Establishment.

4.

Superintendence and administration of the Vigilance Establishment-

(1)

The superintendence of the Uttar Pradesh Vigilance Establishment shall vest in the State Government.

(2)

The administration of the said establishment shall vest in officer, to be called the Director of Vigilance, appointed in this behalf by the State Government, who shall exercise, in respect of that establishment, such of the powers exercisable by the Inspector General of Police in respect of the ordinary police force of the State as the State Government may specify in this behalf.

(3)

Save as otherwise provided in this Act the provisions of the Police Act, 1861 and of the rules and regulations made thereunder as they apply in relation to members of the ordinary police force of the State shall apply in relation to members of the said establishment, subject to such adaptation, whether by way of modification, addition or omission as may be made therein by the State Government consistently with the purposes of the Act.

5.

Repeal and saving.-

(1)

The Uttar Pradesh Vigilance Establishment Ordinance, 1965, is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said ordinance shall be deemed to have been done or taken under this Act, as if this Act had commenced on the fifth day of January 1965.

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